

The Motion is unopposed.

Background

However, the Motion contains a declaration, signed by Defendant, appearing to reflect that he mailed notice of the Motion and hearing to counsel for Plaintiff on (p.10-11 of Motion). The declaration of service is not dated, nor is there a reference to the particular date on which notice was mailed.

The Declaration also has its own declaration reflecting that Defendant, himself, mailed notice of the Declaration to the Plaintiff. The declaration of service is not signed, and it is not dated. The Declaration contains no information about the date of the hearing.

On 7/29/26, Defendant filed two documents reflecting that he emailed notice of the hearing to counsel for Plaintiff.

Analysis

The moving party must provide the opposition with 16 court days of notice before the hearing on the matter. (Section 1005(b) of the CCP.)

What's more, an interested party cannot provide service by mail to the opposition. They can, apparently, do so with email service. (See Sections 1013a and 1013b of the CCP.)

However, service mail requires an extra 5 calendar days of notice; while email service requires an extra 2 court days of service. (See Sections 1013(a) and 1010.6(a)(2)(B) of the CCP.)

In the instant matter, even assuming Defendant had emailed notice of the Motion in addition to the date of hearing on 7/29, it would not have been timely for a hearing on 8/11.

Moreover, the notice reflected in the Motion, filed on 5/15, shows that it was Defendant who mailed the documents. He, though, is an interested party.

Thus, this court finds a lack of service.

Disposition

This Motion will be continued to 10/6/26, 9am.

Defendant to properly notice Plaintiff of the Motion and notice of the next hearing date.

Court will file Order.

3. 9:00 AM CASE NUMBER: L25-00946

CASE NAME: CAPITAL ONE N.A. VS. MADISON ROGERS

NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed, 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed, however, the proof of service of the Motion indicates mail service on an address in Mill Valley. There is no evidence that Defendant resides at this address. The address provided in the Answer as well as in the proof of service of process lists an address in Brentwood.

Thus, this court finds that Plaintiff has not provided Defendant notice with this Motion or the hearing.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to provide notice to Defendant of Motion and hearing date.

4. 9:00 AM CASE NUMBER: L25-03203

CASE NAME: JPMORGAN CHASE BANK N.A. VS. JOANNE BATT

NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY:

TENTATIVE RULING:

Plaintiff filed, on 3/27/26, an amended Motion to vacate dismissal and enter judgment under the terms of a written agreement. The hearing was originally scheduled for 5/6/26, but on that date, this court found that Plaintiff had not served Defendant with a copy of the Motion or the hearing. There was no evidence that the mailing address used for service on the Defendant was in fact the correct address. Defendant had not filed an Answer, and Plaintiff had never served Defendant with process.

This court continued the hearing to 8/11/26, 9am, and ordered Plaintiff to properly serve the Defendant with a copy of the Motion and notice of the hearing.

On 6/9, Plaintiff filed proof that they provided notice to the Defendant of the hearing on 8/11/26, but used the same mailing address as that for the 5/6/26, hearing and provided no additional evidence to corroborate that this is, in fact, the correct address for Defendant.